

24SMCV01081 24SMCV01081

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-09-18

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The court was initially inclined to DENY the application. The CMC was held on February 28, 2025, and at that hearing, the current dates were set and the court warned the parties that there would be no continuances absent truly unforeseen and unforeseen circumstances—something reflected in the written minute order as well. The court also ordered (based on the parties' suggestion) a mediation completion date of December 1, 2025. That date was chosen so that there would be plenty of time to mediate and even have additional sessions well before the trial.

The parties state that they have made good progress in a first mediation session, although the court is not sure when that took place. They will have a second session. It was initially set for late this month but had to be re-set to next month. The parties are hoping to avoid the expense of preparing for trial while they have hopes of a settled resolution. None of that is unforeseen or unforeseeable, and none of that is cause to continue the trial.

What gives the court pause is this. The parties are willing to waive jury and have revised the trial estimate from 7 days to 3 days. If by 3 days the parties mean 8 hours all in, the court will consider GRANTING the motion and setting the case for two consecutive (or almost consecutive) Fridays. Otherwise, the court cannot move things around for the reasons previously given. Otherwise, the application will be DENIED.

That said, if it turns out that the court learns that it is otherwise engaged in trial such that the court will be unable to hear the case as scheduled, then the court would be inclined to move the trial date. The court does not know, however, when it would know the actual trial calendar for early November.